

STATE OF NEW YORK

4747--A

2025-2026 Regular Sessions

IN SENATE

February 12, 2025

Introduced by Sens. CLEARE, ROLISON -- read twice and ordered printed, and when printed to be committed to the Committee on Alcoholism and Substance Use Disorders -- recommitted to the Committee on Alcoholism and Substance Use Disorders in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to establishing an intensive addiction recovery and mental health integrated services pilot program; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 "Topher's Law".

3 § 2. The mental hygiene law is amended by adding a new section
4 19.18-d to read as follows:

5 § 19.18-d Intensive addiction and mental health integrated services
6 pilot program.

7 1. Within the funds appropriated to the office, a pilot program shall
8 be established to support two three-year demonstration programs that
9 provide intensive addiction and mental health integrated services to
10 individuals with significant addiction and mental health issues who have
11 had multiple and frequent treatment episodes. One of the demonstration
12 programs shall be located in a rural area and one shall be located in an
13 urban setting as determined by the commissioner. The services provided
14 shall include but not be limited to mental health counseling services
15 for the individual experiencing significant addiction and mental health
16 issues and their family, peer supports, and transportation assistance.
17 Such services shall be primarily provided in the community or home of
18 such individual, as clinically and socially necessitated.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 2. Within one year after the conclusion of the demonstration program,
2 the commissioner shall provide the governor, the temporary president of
3 the senate, the speaker of the assembly, the chair of the senate stand-
4 ing committee on alcoholism and substance use disorders, and the chair
5 of the assembly committee on alcoholism and drug abuse with a written
6 evaluation of the demonstration programs established pursuant to subdivi-
7 sion one of this section. Such evaluation shall, at a minimum,
8 address the overall effectiveness of such demonstration programs, iden-
9 tify best practices for services provided under the demonstration
10 programs and any additional services that may be appropriate within each
11 type of program operated, regulated, funded, or approved by the office,
12 and address whether continuation or expansion of the pilot program
13 established by subdivision one of this section is recommended. The
14 written evaluation shall be made publicly available on the office's
15 website.

16 § 3. This act shall take effect April 1, 2027 and shall expire on the
17 ninetieth day following the submission of the report provided for
18 pursuant to subdivision 2 of section 19.18-d of the mental hygiene law
19 as added by section two of this act, when upon such date the provisions
20 of this act shall be deemed repealed; provided that the commissioner of
21 the office of addiction services and supports shall notify the legisla-
22 tive bill drafting commission upon the occurrence of the submission of
23 such report provided for in section two of this act in order that the
24 commission may maintain an accurate and timely effective data base of
25 the official text of the laws of the state of New York in furtherance of
26 effectuating the provisions of section 44 of the legislative law and
27 section 70-b of the public officers law.